

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkQowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

DAVID STEWART,

Respondent

) Case Number: FCS-11-346715

) Hearing Date: August 13, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) David Stewart (Father) and Lilia Scott (Mother) have one minor child together, Cybelle (DOB 12/8/2010, age 15). Mother has sole legal and sole physical custody of Cybelle.
- 2) In a Findings and Order After Hearing (FOAH) filed 3/26/2025, the Court noted it had “just recently granted Father unsupervised visitation after essentially a lifetime of estrangement.” The Court ordered unsupervised parenting time for Father twice a month for 2 hours per visit in a public place and ordered Father to bring his son Bruce to the visits until and unless the parties agree otherwise. The Court ordered the parties to meet and confer to schedule the future visits and issued various conduct and communication orders, including an order for Father not to transport Cybelle in a car and for the parties not to use Cybelle as a messenger.
- 3) On 1/27/2026, Father filed a request for joint legal custody and 70/30 physical custody “or some form of equal shared parenting,” “for any weekend or weekday with a ‘Step up’ . . . strategy in place.” Mother opposed the request and requested a Tier II interview of Cybelle, stating the

1 current orders are final, Montenegro orders, Father has not exercised all visits, and there has been
2 no change in circumstances.

3 4) On 4/9/2026, both parties appeared at the hearing on Father's request. Father requested a
4 continuance on the ground that he had just retained counsel, and the matter was continued to
5 5/19/2026.

6 5) At the 5/19/2026 hearing, the Court maintained the current custody and parenting time orders
7 with some modification and ordered a Tier II interview of Cybelle. The Court set the matter for
8 further hearing on 8/13/2026.

9 6) The Court has received and reviewed the Tier II report of Cybelle's interview and has also
10 reviewed and considered the parties' update declarations.

11 **B. Findings and Orders**

12 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
13 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
14 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
15 child is the United States.

16 2) The Court finds it is in Cybelle's best interest to maintain the current legal and physical custody
17 order without modification. As ordered on 5/19/2026, Father is encouraged, but not required to,
18 bring Bruce to his visits with Cybelle. Although the visits shall not be canceled if Bruce is
19 unavailable to attend the visits, the parties should be mindful that Cybelle has clearly stated that
20 she wishes for Bruce to be present at the visits; thus, the parties shall in good faith ensure that
21 Bruce is able to join Father and Cybelle for the visits. Although the Court understands that Father
22 wishes to have more time with Cybelle, the Court finds that an increase in visits (whether
23 immediately or through a step-up schedule) is not in Cybelle's best interest at this time, given her
24 age and stated wishes and the totality of the circumstances including the history of the case.

25 3) If Cybelle wishes to communicate with either Father or Bruce outside of her visits with Father,
26 she may reach out to either of them via text message, email, or phone or video calls, at her
27 discretion. Mother shall not express disapproval about--or discourage Cybelle from--reaching out
28 to Father or Bruce, and Father shall not place any pressure on Cybelle to communicate with him
29 or Bruce.

1 4) All prior orders, including conduct and communication orders, shall remain in full force and
2 effect.

3 5) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JUAN ANTONIO CORTEZ,

Petitioner

VS.

ERIKA I CORTEZ,

Respondent

) Case Number: FDI-10-773402

) Hearing Date: August 13, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF REQUEST FOR ORDER CHANGE OF CHILD
CUSTODY, VISITATION (PARENTING TIME), CHILD SUPPORT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Juan Cortez (Father) and Respondent Erika Cortez (Mother) have one minor child, Emeric (DOB: 10/29/2009, age 16). Father is represented by attorney Donald Bloom. Mother is self-represented.
- 2) On 9/28/2010, in related Case No. FDV-10-808106, Mother filed a Request for Domestic Violence Restraining Order against Father. Father stipulated to a no-contact order and the Temporary Restraining Order expired without further issuance of a Domestic Violence Restraining Order.
- 3) On 7/13/2011, a Judgment Regarding Parental Obligations was filed in related Case No. FCS-10-346145. This Judgment requires Father to pay Mother \$481 per month in child support effective 10/1/2011. This child support order has not been modified to date and remains in effect.
- 4) On 1/23/2014, Mother filed a second Request for Domestic Violence Restraining Order against Father in related Case No. FCS-10-346145. On 2/26/2014, a Domestic Violence Restraining

Order was entered for Mother's protection against Father. The restraining order expired on 2/26/2015.

- 5) On 7/26/2016, a Judgment of Dissolution was entered which incorporates the Child Custody and Visitation Stipulation and Order (filed on 6/24/2014) which grants Mother sole legal custody of Emeric and the parties joint physical custody, with Father having visitation every other weekend from Friday school pick up until Sunday at 12 PM along with overnights on Monday and Wednesday. The Judgment also provides that the child support orders previously established in the related FCS case shall remain in effect.
- 6) To date, the orders set forth in the 7/26/2016 Judgment have not been modified.
- 7) Now on for hearing is Father's Request for Order filed 4/30/2026 seeking to modify the current custody, visitation, and child support orders. Father asks that the parties share joint legal custody and that he be granted sole physical custody, with Mother having visitation on alternate weekends from Friday afternoon to Sunday afternoon, half of holidays, and three weeks of summer vacation. Father also requests guideline child support.
- 8) On 4/23/2026, Father filed an Income and Expense Declaration. Father states that he is a Mechanic and he reports earning \$4,000 per month. Father stated "unknown" for Mother's estimated gross monthly income.
- 9) The parties participated in mediation on 7/30/2026 and were unable to reach an agreement.
- 10) On 8/4/2026, Mother filed a Responsive Declaration asking the Court to deny Father's requests in their entirety and to maintain the current custody, visitation, and child support orders.
- 11) Mother did not file an Income and Expense Declaration.

B. Findings and Order

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child is the United States.
- 2) Based on a review of the parties' submissions, the Court finds it is in Emeric's best interest to maintain the current custody and parenting time order.

1 3) Father requested to modify child support as part of his request to modify the parenting time order.

2 Because the Court is not modifying the parenting time order, and because Father has not
3 identified any material change in circumstances warranting a modification of child support,
4 Father's request to modify the current child support order is denied.

5 4) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ABIGAIL ALCALA,

Petitioner

VS.

SALVADOR ALCALA,

Respondent

) Case Number: FDI-23-798607

) Hearing Date: August 13, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

WHETHER THE COURT SHOULD APPOINT EVIDENCE CODE NICK TARLSON AS EVIDENCE
CODE SECTION 730 EXPERT TO CALCULATE OVERALL ASSETS / DEBT DIVISION AND
EQUALIZATION AND HOW HIS FEES SHOULD BE PAID

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Abigail Alcala (Wife) and Respondent Salvador Alcala (Husband). The parties married on 6/29/1967. In Wife's Petition for Dissolution and Husband's Response and Request for Dissolution, both parties listed 5/5/2023 as their date of separation, for a marriage of 55 years and 11 months. The parties have no minor children in common. Wife is represented by attorney Jane Migachyov. Husband is represented by attorney Jeremy Castro (who substituted into this case on 3/9/2026).
- 2) At the prior 11/25/2025 hearing, the Court partially adjudicated Wife's unopposed Request for Order filed 9/16/2025. The Court:
 - a. Noted that Husband had been served by mail at the address Husband's former attorney listed for Husband (i.e., 226 Goldfinch Way Livermore, CA 94551) in the Amended Substitution of Attorney filed 6/3/2025.

- b. Adopted Wife's guideline temporary spousal support calculation and ordered Husband to pay \$4,650 per month in temporary spousal support effective 9/16/2025;
 - c. Ordered Husband to pay \$11,470 in temporary spousal support arrears for the period 9/16/2025 – 11/30/2025.
 - d. Awarded Wife \$111,162.80 in need-based attorney's fees and costs under Family Code section 2030 for fees incurred to date and for fees incurred through entry of Judgment and ordered Husband to pay this amount to Wife no later than 1/31/2026;
 - e. Ordered Husband to serve his full and complete Preliminary Declaration of Disclosure no later than 12/31/2025;
 - f. Ordered Husband to pay \$623.09 in attorney's fees sanctions under Family Code section 2107(c) and \$10,000 in attorney's fees sanctions under Family Code section 271, to be paid no later than 12/31/2025;
 - g. Reserved jurisdiction over Wife's request for the Court to award her 100% of various assets that Wife claims Husband misappropriated under Family Code section 1101(h);
 - h. Ordered Husband to transfer \$50,000 from community bank accounts to Wife no later than 12/31/2025;
 - i. Set a future hearing date of Tuesday, 1/27/2026 at 9:00 AM in Dept. 404 on Wife's request for the Court to appoint Evidence Code section 730 experts to trace funds Husband may have misappropriated, value the parties' properties, and conduct a business valuation of the parties' cattle ranching business in Mexico.
 - j. Ordered Wife to file and serve a declaration identifying which individuals she would like this Court to appoint as experts in this matter, their hourly rate, and their estimate for how much they believe they will incur to perform the requested tasks. Wife was also ordered to outline what qualifications and experience she believes renders the expert appropriate for appointment, and how she believes the cost of the experts should be allocated between the parties.
- 3) On 12/22/2025, Wife's attorney filed a declaration asking the Court to appoint the following individuals to perform the following tasks. Wife asked that Husband bear the cost of all three

1 experts' work because he allegedly absconded with \$800,000+ of the community's funds and he
2 can afford to pay for the fees.

3 a. Nick G. Tarlson, CPA to calculate the overall asset / debt division and equalization. Wife
4 stated Mr. Tarlson requires a \$5,000 retainer.

5 b. Fernando Gomez-Martin of Valuadores Profesionales Altenos, SA de CV (VALRPOA)
6 to appraise nine properties in Mexico.

7 c. Martin Santos to appraise three properties in San Francisco.

8 4) On 1/26/2026, the Court issued a Tentative Ruling to appoint Fernando Gomez-Martin and
9 Martin Santos as Evidence Code section 730 experts to perform the tasks requested by Wife.
10 However, the Court tentatively determined it would not be appropriate to appoint Nick Tarlson as
11 an Evidence Code section 730 expert to calculate overall assets / debt division and equalization
12 due to Wife's adversarial theory that Husband misappropriated community funds. The Court
13 tentatively determined it "would not be appropriate for a joint neutral expert to conduct and
14 review discovery to investigate that theory and opine on it," and that Wife could hire Mr. Tarlson
15 has her personal expert.

16 5) At the 1/27/2026 hearing, Wife and her attorney appeared and Husband appeared in pro per.
17 Husband stated he did not review the Tentative Ruling and was not ready to proceed. The Court
18 agreed to continue the hearing to give Husband additional time to hire an attorney, continued the
19 hearing to 3/26/2026 (which was later continued to 5/14/2026 by agreement of the parties), and
20 ordered the parties to meet and confer in advance of the next hearing date.

21 6) On 5/7/2026, Wife's attorney filed an Update Declaration. In addition to reiterating her requests
22 that the Court appoint Fernando Gomez-Martin and Martin Santos as Evidence Code section 730
23 experts, Wife requests that the Court re-consider appointing Nick Tarlson as an Evidence Code
24 section 730 expert. Wife's attorney states: "Having Mr. Tarlson address the issues in this case,
25 including misappropriation of funds is appropriate... because the determination that there is a
26 breach of fiduciary duty is a legal one that only the attorneys can argue. The decision whether
27 there was a breach of fiduciary duty rests firmly with the Court. The only role Mr. Tarlson would
28 have is to objectively and neutrally evaluate records presented by both sides to trace relevant
29 transactions and report back to counsel and the Court. He would not make the ultimate conclusion

1 whether there was a breach of fiduciary duty.” Wife’s attorney states Mr. Tarlson estimated that
2 forensic fees could be between \$20,000 - \$40,000 given the different facets of the case.

3 7) Wife’s attorney states that meet and confer efforts with Husband’s attorney ended in failure.
4 Wife’s attorney states, “He refused to state that his client would make ANY of the payments
5 ordered in November 2025. I asked him about the disclosures and he said he was ‘75%’ done. I
6 have yet to see any disclosures a week later. On April 27, 2026 I presented to counsel the January
7 2026 Citibank and First Federal Credit Union documents attached as exhibits here and asked for
8 confirmation by the end of the week that his client would pay the balances to my client – he never
9 did so. Having 730 experts would force counsel and their clients to promptly comply with
10 document and information requests. But for Husband’s stonewalling, this divorce would have
11 ended long ago. My client is elderly and indigent. She simply wants to get what she is entitled to
12 and move on with her life.”

13 8) On 5/11/2026, Husband’s attorney filed a Status Update. Husband’s attorney states that Husband
14 is working to restore Wife’s health insurance coverage, is working on his financial disclosures,
15 and is preparing a counter-settlement offer to Wife’s settlement proposal. Husband’s attorney also
16 states that the current spousal support and attorney’s fees orders were based on incorrect
17 information and Husband is working to provide accurate and complete information to the Court.
18 Husband states that “the order for payment expert fees was likewise made without proper
19 consideration of Respondent’s actual income and financial capacity and based in part on false
20 information provided by Petitioner.” Husband asks the Court to: (a) continue any currently
21 scheduled hearing to allow the parties adequate time to complete disclosures and finalize
22 settlement discussions; (b) stay the existing spousal support and attorney’s fees order pending
23 further proceedings “as Respondent’s income has not been accurately represented in prior
24 submissions and will be properly reflected in the forthcoming financial disclosures”; and (c) stay
25 any outstanding fees/sanctions payment, to be addressed and resolved at the time of the
26 settlement conference.

27 9) On 5/13/2026, Husband filed a Declaration Regarding Service of Declaration of Disclosure
28 stating that his Preliminary Declaration of Disclosure was emailed to Wife’s attorney on
29 5/13/2026.

1 10) At the prior 5/14/2026 hearing, the Court adopted its Tentative Ruling without objection and
2 ordered the following:

- 3 a. The Court hereby appoints Fernando Gomez-Martin as the Court's Evidence Code
4 section 730 expert to appraise the parties' nine properties in Mexico. Within 10 days of
5 any request by Mr. Gomez-Martin for documents, the parties shall provide such
6 documents to Mr. Gomez-Martin. Effective immediately, all parties must be CC'd on all
7 communications with Mr. Gomez-Martin. The Court authorizes Mr. Gomez-Martin to
8 charge "\$3,000 Mexican Pesos" per property to be appraised. If Mr. Gomez-Martin
9 requires additional fees beyond this amount, the parties may return to Court for this
10 request.
- 11 b. The Court hereby appoints Martin Santos as the Court's Evidence code section 730
12 expert to appraise the parties' three properties in San Francisco. Within 10 days of any
13 request by Mr. Santos for documents, the parties shall provide such documents to Mr.
14 Santos. Effective immediately, all parties must be CC'd on all communications with Mr.
15 Santos. The Court authorizes Mr. Santos to charge \$1,500 per property to be appraised. If
16 Mr. Santos requires additional fees beyond this amount, the parties may return to Court
17 for this request.
- 18 c. Husband shall pay any invoices presented by Mr. Gomez-Martin and Mr. Santos within
19 10 days of receipt of such invoices. The Court's jurisdiction to reallocate the cost of these
20 experts is reserved for trial / final Judgment.
- 21 d. The Court finds that it is premature to appoint Nick Tarlson as an Evidence Code Section
22 730 expert to calculate overall assets / debt division and equalization before Husband has
23 served his Preliminary Declaration of Disclosure, and Wife's request to appoint Nick
24 Tarlson as an expert in this matter is continued to Thursday, 8/13/2026 at 9:00 AM in
25 Dept. 404.
- 26 e. The Court previously ordered Husband to serve his Preliminary Declaration of Disclosure
27 by 12/31/2025. Husband has yet to do so, although his attorney states that it is almost
28 completed. Husband shall serve his Preliminary Declaration of Disclosure forthwith.
29 After Husband serves his Preliminary Declaration of Disclosure, the parties shall

1 continue to meet and confer. If the parties are unable to reach an agreement, at least 20
2 calendar days prior to the next hearing date, both parties shall file updated and fully
3 completed Income and Expense Declarations.

4 f. At least 10 calendar days prior to the next hearing date, both parties shall file and serve
5 update declarations addressing the narrow issue of whether the Court should appoint Nick
6 Tarlson as an Evidence Code Section 730 expert to calculate overall assets / debt division
7 and equalization and how Mr. Tarlson's fees should be paid.

8 g. The Court's jurisdiction to award attorney's fees sanctions due to Husband's failure to
9 serve his Preliminary Declaration of Disclosure by statutorily and Court-provided
10 deadlines is reserved.

11 h. Husband's requests made in his attorney's declaration filed 5/11/2026 to stay the
12 enforcement of any orders requiring payment of spousal support, attorney's fees, and
13 sanctions are denied without prejudice as these issues are not currently before the Court.

14 11) On 7/23/2026, Wife filed an Income and Expense Declaration. Wife states that she is 76 years old
15 and she listed the following sources of monthly income: \$763 in social security retirement and
16 \$750 in real property income. Wife states that she has \$0 in cash and investments and has \$2.8
17 million in real and personal property. Wife states that her monthly expenses total \$3,900 and
18 \$1,250 of this is paid by others (no further explanation provided).

19 12) On 7/27/2026, Husband filed an Income and Expense Declaration. Husband states that he is 79
20 years old and is retired. Husband lists the following sources of monthly income: \$504 in pension /
21 retirement fund payments, \$2,090 in social security retirement, and \$4,900 in rental property
22 income. Husband states that he has \$15,000 in cash. He left the section for investments blank and
23 wrote "unknown" for real and personal property. Husband states that his monthly expenses total
24 \$5,448.

25 13) On 8/3/2026, Wife's attorney filed an Update Declaration asking the Court to appoint Nick
26 Tarlson, CPA, as the Court's Evidence Code section 730 expert to review the following issues:
27 asset / debt division, financial misappropriation, and marital standard of living. Wife's attorney
28 states, "My client is willing to streamline the forensic process by foregoing a business valuation
29 and basing the asset/debt division on the properties and financial accounts alone. This will

1 shorten the time window for forensics and save money.” Wife requests that Husband advance the
2 cost of Mr. Tarlson’s retainer and ongoing fees, subject to reallocation.

3 14) On 8/5/2026, Husband filed a Status Update. Husband asserts, for the first time in this matter to
4 date, that the parties actually separated in March 1993 and he is planning to file an amended
5 Response and propound discovery. Husband states that at the time he signed prior filings in this
6 matter, he did not read, speak, or otherwise understand English, which affected his ability to
7 review and comprehend the contents of those documents. Husband states, “Respondent disputes
8 Petitioner’s valuation of the properties located in Mexico (as set forth in her Schedule of Assets
9 and Debts), and contends the value and income-generating capacity of those properties has been
10 significantly overstated. There is no lease or rental contract, or cattle business, associated with
11 Don Julio or otherwise.” Husband states he is in the process of filing a motion to set aside the
12 support, fee and sanction orders entered on 12/24/2025. Husband states, “Respondent maintains
13 that there has been no misappropriation of funds and that all funds are fully accounted for,
14 including a loan made to Respondent by his daughter and her husband, a portion of which has
15 been repaid, with a remaining balance still owed. Rental income and equity derived from the
16 properties has been used to repay this loan, as well as to pay the mortgage, insurance, taxes, and
17 maintenance and repair costs, and otherwise to support the upkeep of the properties for the last 33
18 years.” Husband further states, “Respondent proposes that the parties participate in mediation
19 rather than engage in extended litigation. Respondent does not have the means to drag this matter
20 out. Respondent does not agree to the appointment of a forensic accounting expert. As alleged by
21 Petitioner, no business exists, and there are no contracts with Don Julio in Mexico. The parties
22 have been separated since 1993, and there is no basis for a forensic business investigation...
23 Respondent agrees that valuations of the real properties are appropriate and is willing to
24 participate in mediation to facilitate resolution of the remaining issues.”

25 **B. Findings and Order**

26 1) The Court does not find good cause to appoint Nick Tarlson, CPA, as a forensic expert in this
27 case at this time for the following reasons. First, there is a dispute regarding the date of separation
28 which must be resolved as an initial matter. Second, the Court is not persuaded that the
29 information Mr. Tarlson may provide cannot be obtained by the attorneys themselves following

1 completion of discovery and / or an informal exchange of documents and information,
2 particularly as Wife has now stated that she is not currently seeking Mr. Tarlson to conduct a
3 business valuation. Wife's request to appoint Nick Tarlson, CPA, as a forensic expert in this case
4 is denied without prejudice to a future request should circumstances change.

5 2) The parties shall continue to meet and confer in good faith.

6 3) Husband's attorney shall prepare the Findings and Order After Hearing.

7 4) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
8 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
9 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
10 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
11 proposed order after hearing directly to the court. Failure to submit the order after hearing within
12 10 days may allow the other party to prepare a proposed order and submit it to the court in
13 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CLAY MONTGOMERY,

Petitioner

VS.

CAITLIN MONTGOMERY,

Respondent

) Case Number: FDI-24-799969

) Hearing Date: August 13, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

- REVIEW OF CUSTODY AND VISITATION

TENTATIVE RULING

The custody and parenting time hearing is continued to **8/20/2026 at 9AM in Department 404** due to the Child Protective Services investigation. The parties shall check the Court's tentative ruling at 2PM on 8/19/2026.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

PAULINE GUNAWAN,

Petitioner

VS.

SIMON MEI,

Respondent

) Case Number: FDI-24-800605

) Hearing Date: August 13, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER TERMINATE MARITAL STATUS & REQUEST 271 SANCTION

TENTATIVE RULING

The parties are ordered to appear in Dept. 404 at 9 AM on 8/13/2026 in-person or by Zoom video to arrange a time for Wife to return to Husband his passport, Certificate of Citizenship, and other identification documents. The parties shall also be prepared to discuss the photo and video material of Wife that Wife states is in Husband's possession.

If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

1) Petitioner Pauline Gunawan (Wife) and Respondent Simon Mei (Husband) married on 3/30/2022.

The parties agree they separated on 8/1/2023, for a marriage of 1 year and 4 months. The parties have no minor children. Wife is represented by Open Door Legal attorney Brittany Jackson.

Husband is represented by attorney Joseph Tse.

2) On 11/26/2024, Wife filed a Community Property Declaration which lists the following assets and debts: 1995 Toyota Camry (\$2,000), Joint Chase Savings Account (\$3,110), Joint Chase Checking Account (\$2,052.58), Respondent's PAGA Settlement (\$604.95), Respondent's Blue Nile Loan (\$3,287.87), and Respondent's Amazon Credit Card (Unknown).

- 1 3) On 2/25/2025, Wife filed a Declaration Regarding Service of Declaration of Disclosure stating
2 that her Preliminary Declaration of Disclosure was personally served on Husband on 2/18/2025.
- 3 4) On 3/6/2026 and 4/16/2026, Husband filed Declarations Regarding Service of Declaration of
4 Disclosure stating that his Preliminary Declaration of Disclosure was electronically served on
5 6/13/2025.
- 6 5) Now on for hearing is Husband's Request for Order filed 4/13/2026 asking the Court to bifurcate
7 and terminate the parties' marital status and order Wife to return "all of my personal documents
8 and belongings currently in her possession, including but not limited to my passport, Certificate
9 of Citizenship, and other identification documents." Husband also requests the Court to award
10 him \$4,000 in Family Code section 271 attorney's fees sanctions. Attached to Husband's Request
11 for Order is a declaration by his attorney Joseph Tse who states, "Since the exchange of
12 disclosures, my office has made multiple good-faith efforts to resolve this matter informally and
13 to obtain Petitioner's agreement to bifurcate and terminate marital status without the necessity of
14 a hearing... Petitioner's failure to respond to repeated communications necessitated the
15 preparation and filing of the present Request for Order seeking bifurcation and sanctions."
16 6) On 6/2/2026, Wife's attorney Brittany Jackson filed a Request to Reschedule Hearing, asking that
17 the 6/16/2026 hearing date originally scheduled for Husband's 4/13/2026 Request for Order be
18 continued because Ms. Jackson needed to care for her mother who had two eye surgeries
19 scheduled for 6/9/2026 and 6/16/2026.
- 20 7) On 6/12/2026, the Court granted Ms. Jackson's request and continued the hearing date to
21 8/13/2026.
- 22 8) On 7/31/2026, Wife filed a Responsive Declaration asking the Court to deny Husband's requested
23 relief.
- 24 9) On 8/5/2026, Wife's attorney Ms. Jackson filed a declaration stating that on 2/21/2025 and
25 3/4/2025, she emailed Husband's attorney Mr. Tse to coordinate moving the case forward and to
26 arrange for Husband to retrieve his personal belongings from Wife's possession. Ms. Jackson
27 states Mr. Tse did not respond. Ms. Jackson states that on 9/2/2025, her office contacted Mr. Tse
28 regarding the following missing statements: Credit Card Statements, Loan Statement from Blue
29 Nile, other debt statements (Fastrak and DMV fee), Car title, 2024 Tax Returns, Chase 9321

1 Savings Statements, and Chase 8500 Checking Statements. Regarding the latter two accounts,
2 Ms. Jackson's office stated that they understood the accounts would automatically be closed due
3 to zero funds but they still wanted to see the statements for those accounts. Ms. Jackson states
4 that to date Mr. Tse has not provided the requested documents. Ms. Jackson states that on
5 2/23/2026, she received a settlement proposal from Mr. Tse, which she confirmed receiving in
6 March 2026. In May 2026, Ms. Jackson requested that the parties meet and confer and did not
7 hear back from Mr. Tse. Ms. Jackson states that both parties have items in the other's possession
8 that the other party would like to retrieve, including intimate and potentially damaging photo and
9 video material of Wife. Ms. Jackson requests that the Court deny Husband's request to bifurcate
10 and terminate marital status because there are several statements missing for several accounts
11 from Husband's Preliminary Declaration of Disclosure and terminating the parties' marital status
12 would eliminate any incentive for Husband to meet and confer or work towards a global
13 settlement or return property in each party's possession. Ms. Jackson also states that she and Wife
14 have been conducting themselves in good faith and that Wife is unemployed and does not have
15 the ability to pay any sanction award.

16 10) On 8/6/2026, Wife's attorney Ms. Jackson filed a Request to Reschedule Hearing. Ms. Jackson
17 states there has been a material breakdown in communication and the attorney-client relationship
18 that impairs Ms. Jackson's ability to provide effective representation and this necessitates
19 additional time to address representation issues.

20 11) Husband did not file a Reply Declaration.

21 **B. Findings and Order**

22 1) Wife's request for a second continuance of the hearing on Husband's 4/13/2026 Request for
23 Order is denied. The Court finds that Wife has been able to substantively respond to Husband's
24 request in her attorney's declaration filed 8/5/2026. The Court also finds that any potential
25 prejudice to Wife from entry of a status-only judgment is adequately addressed by the statutory
26 protections imposed pursuant to Family Code section 2337(c) in addition to the Court's express
27 reservation of jurisdiction over all remaining issues.

28 2) No later than Friday, 8/21/2026 at 5:00 PM, Husband shall provide to Wife a copy of the title for
29 his vehicle as well as copies of his 2024 Tax Returns. Husband shall also provide statements

1 showing the values and balances for the following accounts as of date of marriage and date of
2 separation:

- 3 a. BOA Credit Card #1
- 4 b. BOA Credit Card #2
- 5 c. Apple Credit Card (0011)
- 6 d. Citi Bank Credit Card (2418) #1
- 7 e. Amazon Credit Card (4578)
- 8 f. FBT & Mercury Financial Credit Card (2478)
- 9 g. Capital One Credit Card (7805)
- 10 h. SYNCB/PPC Credit (4419)
- 11 i. Citi Bank Credit Card (6616) #2
- 12 j. Loan Statement from Blue Nile (see FL-142)
- 13 k. Other debt statements (Fastrak and DMV fee)
- 14 l. Chase 9321 Savings Statements
- 15 m. Chase 8500 Checking Statements

16 3) The Court finds:

- 17 a. Wife filed a Petition requesting Dissolution of Marriage on 11/26/2024, citing
18 irreconcilable differences.
 - 19 b. Father filed a Response and Request for Dissolution of Marriage on 2/4/2025, also citing
20 irreconcilable differences.
 - 21 c. The Court first acquired jurisdiction over Husband when Husband was personally served
22 with the Petition and Summons on 2/18/2025.
 - 23 d. Within the Petition, Wife indicated she was a resident of California for at least six months
24 and of San Francisco County for at least three months immediately preceding the filing of
25 the Petition.
 - 26 e. On 2/25/2025, Wife filed a Declaration Regarding Service of Declaration of Disclosure
27 stating that her Preliminary Declaration of Disclosure was personally served on Husband
28 on 2/18/2025.
- 29

1 f. On 3/6/2026 and 4/16/2026, Husband filed Declarations Regarding Service of
2 Declaration of Disclosure stating that his Preliminary Declaration of Disclosure was
3 electronically served on 6/13/2025.

4 g. Neither party has identified any pension or retirement plans in which the community has
5 an interest.

6 4) Based on the foregoing, Husband's request to bifurcate and terminate the parties' marital status is
7 GRANTED with the protections set forth below. Each party is restored to their previous single
8 status as of 8/13/2026. The Court finds this termination date meets the requirement set forth in
9 Family Code section 2339(a).

10 5) As set forth in the attached Bifurcation of Status of Marriage or Domestic Partnership (FL-347),
11 the protections of Family Code section 2337(c)(1)-(6) shall apply against Husband until judgment
12 is entered and becomes final on all remaining issues.

13 6) The parties are reminded that the automatic temporary restraining orders set forth in the
14 Summons remain in effect pursuant to Family Code section 233(a), notwithstanding termination
15 of the parties' marital status.

16 7) The Court's jurisdiction to adjudicate all remaining issues in this dissolution matter is reserved
17 under Family Code section 2337(f).

18 8) Husband's attorney shall prepare the Status-Only Judgment and Notice of Entry of Judgment and
19 submit three hard copies of these documents to the Dept. 404 clerk.

20 9) Husband's request for \$4,000 in Family Code section 271 attorney's fees sanctions is denied.

21 10) **The parties are ordered to appear in Dept. 404 at 9 AM on 8/13/2026 in-person or by Zoom**
22 **video to arrange a time for Wife to return to Husband his passport, Certificate of**
23 **Citizenship, and other identification documents. The parties shall also be prepared to**
24 **discuss the photo and video material of Wife that Wife states is in Husband's possession.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JENNIFER KAIN,

Petitioner

VS.

SHANE KING,

Respondent

) Case Number: FDV-17-813669

) Hearing Date: August 13, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY VISITATION (PARENTING TIME),
AND TIER II INTERVIEW WITH MINOR CHILD

TENTATIVE RULING

**The parties are ordered to appear in-person or via Zoom video at 9AM on 8/13/2026 in
Department 404. If a party chooses to appear by Zoom, that party must abide by the Notice and
Instructions for Remote Appearance in San Francisco Family Court set forth above.**